Breach of Duty

English tort law | Study guide | Duty, reasonable care and breach

1. A duty is not the same as a breach

A **duty of care** is a legal obligation to take reasonable care towards a particular claimant in the relevant circumstances. **Breach of duty** means failing to meet the level of care that this obligation requires. Establishing the duty does not automatically establish a breach.

Claimant means the person bringing the civil claim. **Defendant** means the person against whom it is brought. The question here concerns the defendant's conduct towards the claimant, not whether the claimant fell below the defendant's standard.

2. The structure of negligence

A negligence claim normally requires:
Duty: did the defendant owe this claimant a relevant duty of care?
Breach: did the defendant fail to meet the applicable standard?
Causation: did that breach cause the damage, both factually and in the legally relevant sense?
Actionable damage: has the claimant suffered legally recognised loss within the duty's scope and the rules on remoteness?

This sequence is a study framework, not an arithmetic equation. Defences may also affect the result. A careless act is not automatically a completed tort of negligence merely because it might have caused an accident.

3. How earlier topics fit

Physical injury, recognised psychiatric illness and financial loss raise different questions about legal protection. Consequential financial loss may follow an actionable injury or property damage, but recovery still requires the other elements. Pure economic loss is generally restricted in ordinary negligence; recognised exceptions include certain responsibility-based duties for advice or services.

> Duty asks: "Was there a legal obligation towards this claimant?" Breach asks: "Was the defendant's conduct sufficiently careful?" Causation and damage ask what legally relevant harm resulted.

Transcript corrections: the relevant harm is suffered by the claimant, not "caused by the claimant to the defendant". The restriction on pure economic loss is not an absolute ban. Psychiatric injury requires more than ordinary upset.

What Standard Must Be Met?

1. The standard of care

The **standard of care** is the appropriate level of care expected of the defendant. Ordinarily, the court compares the conduct with that of a reasonable person in the defendant's position. This is an objective assessment: saying "I personally thought it was safe" does not settle the issue.

The reasonable person is a legal benchmark, not a perfectly cautious person or merely an average of what people happen to do. Conduct can be widespread and still fall below reasonable care.

2. A threshold, not a guarantee

A breach occurs when conduct falls **below** the applicable standard. The defendant need not exceed what reasonable care requires, but describing the standard as "the bare minimum" must not suggest that very little effort always suffices. Serious risks may require substantial precautions.

If the defendant meets the applicable standard, an injury does not itself establish negligence. Reasonable care is not a promise that nobody will ever be hurt. Other legal causes of action may have different requirements.

3. Context matters

The required precautions depend on the foreseeable risk, its possible seriousness and the practicality of protective steps. Assess conduct on information reasonably available before the event, rather than treating later knowledge as if it had always been available. Special rules for children and professional work require separate analysis.

4. Acts and omissions

An **act** is something done; an **omission** is a failure to act. Either can breach an existing duty. However, there is generally no common-law duty simply to protect a stranger from harm, subject to recognised exceptions. Do not assume a duty just because intervention would have helped.

> Keep two questions separate: first, whether the law required this defendant to act for this claimant; second, whether the defendant did what that duty reasonably required.

The transcript introduces the general standard. It does not establish one identical set of precautions for every person and every situation. The next stage is applying the appropriate standard to the particular facts.

Examples and a Leading Case

1. Invented example: a careless near miss

A driver looks at a phone while driving through a pedestrian crossing. Assume this falls below reasonable care. Nobody is struck and no legally recognised damage occurs. The conduct may breach the duty owed to road users, but without actionable damage there is no completed claim for damages in negligence. Traffic-law consequences are a separate question.

2. Invented example: an injury after reasonable care

A driver keeps a proper lookout, travels at an appropriate speed and responds reasonably when a pedestrian suddenly enters the road. An injury still occurs. If the court finds that the applicable standard was met, the injury alone does not prove breach. This is a conditional example: the actual evidence could change that finding.

3. Added case: Blyth v Birmingham Waterworks

In **Blyth v Birmingham Waterworks Co (1856) 11 Exch 781**, exceptionally severe frost affected waterworks apparatus, allowing water to escape and damage the claimant's home. The apparatus was sound and precautions had been appropriate for conditions reasonably expected from experience.

The waterworks company won in the Court of Exchequer. The court found no sufficient evidence of negligence in failing to prevent the exceptional event. Alderson B explained the standard through what a reasonable person would do, or would avoid doing, in the circumstances.

The lesson is not that freezing weather always excuses a supplier. It is that liability depends on reasonable precautions against the risks that should have been anticipated. Changed knowledge, warnings or equipment defects could produce a different analysis.

> Compare: careless conduct without damage → no completed negligence claim for damages. Damage without breach → that negligence claim fails. Breach causing actionable damage → continue checking all the remaining requirements.

The two driving scenarios are invented. Blyth is an added teaching authority, not a case discussed in the supplied transcript. Its historical facts should not be treated as current technical guidance for water systems.

Check Your Understanding

1. Does proving a duty also prove breach?
Answer: No. A duty establishes the obligation; breach requires showing that the defendant's conduct fell below the applicable standard.

2. Whose conduct is assessed for breach?
Answer: The defendant's conduct towards the claimant. The claimant's own conduct may raise separate issues, such as contributory negligence.

3. Does reasonable care guarantee safety?
Answer: No. An accident can happen even where the required care was taken. Injury alone is not proof of breach.

4. Can there be a breach without a completed negligence claim?
Answer: Yes. For example, careless driving may cause a near miss without actionable damage. A damages claim in negligence requires more than breach.

5. Why did the waterworks company win in Blyth?
Answer: The evidence did not establish negligence: appropriate precautions against reasonably anticipated frost were not made unreasonable by the exceptional event.

6. Can an omission breach a duty?
Answer: Yes, if the defendant owed a relevant duty to take the omitted step. There is no general duty to rescue every stranger; exceptions require analysis.

7. Does pure economic loss always prevent recovery?
Answer: No. Ordinary negligence generally restricts it, but recognised responsibility-based duties and other legal routes may apply.

> Exam sequence: identify claimant and defendant → establish the relevant duty → state the applicable standard → compare the actual conduct with that standard → explain breach or no breach → examine causation, actionable damage and any defences.

Sources

Adapted from the supplied Law Academy transcript, correcting reversed party references and overbroad statements about loss. Added primary authorities: Blyth v Birmingham Waterworks Co (1856) 11 Exch 781, 156 ER 1047; Tindall v Chief Constable of Thames Valley Police [2024] UKSC 33, paras 1 and 44-49. Blyth illustrates reasonable care; Tindall supports the qualification about omissions. Invented examples are marked.